

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1771

By: Moore

AS INTRODUCED

An Act relating to the Oklahoma Educational Television Authority; amending 70 O.S. 2021, Section 23-105, as amended by Section 1, Chapter 296, O.S.L. 2023 (70 O.S. Supp. 2024, Section 23-105), which relates to the creation of the Authority; modifying sunset provision; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 23-105, as amended by Section 1, Chapter 296, O.S.L. 2023 (70 O.S. Supp. 2024, Section 23-105), is amended to read as follows:

Section 23-105. There is hereby re-created, ~~to continue until July 1, 2026, in accordance with the provisions of the Oklahoma Sunset Law, Section 3901 et seq. of Title 74 of the Oklahoma Statutes,~~ a body corporate and politic to be known as the "Oklahoma Educational Television Authority", and by that name the Authority may sue and be sued, and plead and be impleaded. The Authority is hereby constituted an instrumentality of the state, and the exercise by the Authority of the powers conferred by this article for the

1 planning, construction, operation, and maintenance of educational  
2 television facilities shall be deemed and held to be an essential  
3 function of the state.

4       The Oklahoma Educational Television Authority shall consist of  
5 thirteen (13) members, including the President of the University of  
6 Oklahoma, the President of Oklahoma State University, the State  
7 Superintendent of Public Instruction, the Chancellor of the Oklahoma  
8 State Regents for Higher Education, the president of one of the  
9 state-supported four-year colleges to be chosen by the presidents of  
10 this group of institutions, the president of one of the state-  
11 supported two-year colleges to be chosen by the presidents of this  
12 group of institutions, and seven additional members to be appointed  
13 by the Governor with the advice and consent of the Senate, to serve  
14 seven-year terms.

15       The appointed members shall have been residents of the state for  
16 at least five (5) years preceding the date of their appointment.  
17 The appointed members shall include one member from each of the  
18 congressional districts and any remaining members shall be appointed  
19 from the state at large. However, when congressional districts are  
20 redrawn each member appointed prior to July 1 of the year in which  
21 such modification becomes effective shall complete the current term  
22 of office and appointments made after July 1 of the year in which  
23 such modification becomes effective shall be based on the redrawn  
24 districts. Appointments made after July 1 of the year in which such

1 modification becomes effective shall be from any redrawn districts  
2 which are not represented by an authority member until such time as  
3 each of the modified congressional districts are represented by an  
4 authority member. A majority of the appointed members shall be  
5 actively engaged in the profession of education. Each appointed  
6 member of the Authority, before entering upon the duties of the  
7 member, shall take the oath provided for by Section 1 of Article XV  
8 of the Constitution of the State of Oklahoma.

9       The seven original members appointed by the Governor shall  
10 continue in office for terms expiring on June 30, 1954; June 30,  
11 1955; June 30, 1956; June 30, 1957; June 30, 1958; June 30, 1959;  
12 and June 30, 1960, respectively. The terms of each of the original  
13 appointed members shall be designated by the Governor, and said  
14 members shall serve for their appointed terms and until their  
15 respective successors shall be appointed and qualified. The  
16 successor of each appointed member shall be appointed for a term of  
17 seven (7) years, except that any person appointed to fill a vacancy  
18 shall be appointed to serve only for the unexpired term in said  
19 vacancy.

20       The Authority shall elect from the membership of the Authority a  
21 chair, a vice-chair, and a secretary-treasurer. Any such officers  
22 elected by the Authority on or after July 1, 1984, shall be  
23 appointed to serve a term of one (1) year. Seven members of the  
24 Authority shall constitute a quorum, and the vote of seven members

1 shall be necessary for any action taken by the Authority. No  
2 vacancy in the membership of the Authority shall impair the right of  
3 a quorum to exercise all the rights and perform all the duties of  
4 the Authority. The Authority shall meet at least quarterly.

5 The members of the Authority shall not be entitled to  
6 compensation for their services, but each member shall be reimbursed  
7 for travel expenses incurred in performing official duties in  
8 accordance with the provisions of the State Travel Reimbursement  
9 Act. No liability or obligation shall be incurred by the Authority  
10 beyond the extent to which monies shall have been provided pursuant  
11 to the authority of this article.

12 SECTION 2. This act shall become effective November 1, 2025.

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